



CHAPTER cxxv.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Stonehaven Harbour. A.D. 1905.
[4th August 1905.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63, Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Stonehaven Harbour Order Confirmation Act 1905. Short title.

[Ch. cxxv.] *Stonehaven Harbour Order Confirmation* [5 EDW. 7.]
Act, 1905.

A.D. 1905.

S C H E D U L E.

STONEHAVEN HARBOUR.

Provisional Order to revive the powers and extend the time for the construction of Works at the Harbour of Stonehaven in the County of Kincardine authorised by the Stonehaven Harbour Order 1891 and extended by the Stonehaven Harbour Order 1896.

WHEREAS by the Stonehaven Harbour Order 1891 confirmed by the Pier and Harbour Orders Confirmation (No. 2) Act 1891 (in this Order called "the Order of 1891") the Stonehaven Harbour Trustees (hereinafter referred to as "the Trustees") were incorporated and were authorised to construct the pier and harbour works at Stonehaven and other works connected therewith all as in the said Order described :

And whereas by the Stonehaven Harbour Order 1896 confirmed by the Pier and Harbour Orders Confirmation (No. 2) Act 1896 (in this Order called "the Order of 1896") the powers for executing the said works were revived and the time extended for the construction thereof :

And whereas the time so extended for the completion of the works expired on the second day of July one thousand nine hundred and one and it is expedient that the said powers should be again revived and the time further extended as in this Order provided :

And whereas plans and sections showing the lines and levels of the said works were duly deposited in the office at Stonehaven of the principal Sheriff Clerk of the county of Kincardine :

And whereas the purposes aforesaid cannot be effected without an Order by the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited for all purposes as the Stonehaven Harbour Order 1905.

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Act, 1905.

A.D. 1905.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same which date is herein referred to as "the commencement of this Order."

Commence-
ment of
Order.

3. In this Order and for the purposes thereof (unless there be something in the subject or context inconsistent with this Order or repugnant to such construction) the words and expressions to which meanings are assigned by and under the Order of 1891 shall have the same respective meanings.

Interpreta-
tion.

4. The powers granted to the Trustees by the Order of 1891 and revived and extended by the Order of 1896 shall be and the same are hereby revived and further extended and may be exercised by the Trustees for the further period of five years from the commencement of this Order.

Revival of
powers and
extension of
time for
construction
of works.

5. The said works so authorised are the following (that is to say):—

Description
of works.

- (1) A solid breakwater and pier commencing at the north-east corner of the Old Tolbooth of Stonehaven and extending in an easterly direction three hundred and seventy feet or thereby and thence proceeding in a south-easterly direction three hundred and forty feet or thereby;
- (2) The widening of the inner portion of the existing north pier commencing at a point twenty feet southwards from the junction of the breastwork and north pier and extending eastwards for a distance of three hundred and ten feet or thereby and terminating at the west side of the outer portion of the north pier;
- (3) The widening of the outer portion of the existing north pier commencing at the south end of the same and extending in a south-easterly direction for twenty feet or thereby and thence in a north-easterly direction for a distance of two hundred and sixty-five feet or thereby and terminating at Work No. 1;
- (4) The excavation of a part of the area of the proposed new outer harbour to a depth of six feet below low water mark of ordinary spring tides:

All which intended works are situated in the parish of Dunnottar and county of Kincardine and wholly or partly in the burgh of Stonehaven and in the foreshore and bed of the sea ex adverso of the said parish county and burgh.

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Powers to
cease if
works not
completed.

6. The extended period hereby granted for completing the works authorised by the Order of 1891 shall with reference to the completion thereof be deemed to be the period limited by the said Order for the completion of the same provided that if the said works shall not be completed within the period limited by this Order then on the expiration of such period the powers granted to the trustees for the construction and completion thereof shall cease except as to so much thereof as shall then be completed.

Restrictions
on taking
houses of
labouring
class.

7. The Trustees shall not under the powers of this Order or of the Orders of 1891 and 1896 purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. If the Trustees acquire or appropriate any house or houses under the powers of this Order or of the Orders of 1891 and 1896 in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "labouring class" includes mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them. The expression "house" means any house or part of a house occupied as a separate dwelling.

As to Har-
bours Docks
&c. Act
1847.

8. The Harbours Docks and Piers Clauses Act 1847 is incorporated with this Order with the like exceptions and reservations as mentioned in the Order of 1891.

Saving
rights of
Crown.

9. Nothing in this Order or in the Order of 1891 or in the Order of 1896 shall affect prejudicially any estate right power privilege or exemption of the King's most Excellent Majesty and in particular nothing contained herein or in the Order of 1891 or

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in the Order of 1896 shall authorise the Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or the minerals therein or thereunder or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of such Commissioners on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners are hereby authorised to give). A.D. 1905.

10. All the provisions of the Order of 1891 and the Order of 1896 shall subject to the provisions of this Order extend and apply to the purposes of this Order. Incorporation
of provisions
of Orders of
1891 and 1896.

11. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the Act confirming the same or otherwise in relation thereto shall be paid by the Trustees And if such costs are paid out of borrowed money the amount thereof shall be repaid within five years from the commencement of this Order. Costs of
Order.

Printed by EYRE and SPOTTISWOODE,

FOR

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